

520 San Antonio Road • Mountain View, CA • 94040
650-947-3900 (main) • 650-948-6120 (fax)

Account Manager: Jim Widmann Date of Issue: November 19, 2004 Order Number: 20041119JHW-01
RJRT Agreement #:

This I/O is valid only when executed by advertiser within two (2) weeks of issue.

Advertiser:	<u>RJ Reynolds Tobacco Company, Inc.</u>	Agency:	<u></u>
Billing Contact:	<u>Lori MacWilliams</u>	Billing Contact:	<u></u>
Production Contact:	<u></u>	Production Contact:	<u></u>
Billing Address:	<u>401 N. Main Street</u>	Billing Address:	<u></u>
City, State, Zip:	<u>Winston-Salem, NC 27102</u>	City, State, Zip:	<u></u>
Email:	<u>lori.macwilliams@rjt.com</u>	Email:	<u></u>
Phone:	<u>336/741-6374</u>	Phone:	<u></u>
	<u>Fax:336/728-7796</u>		<u>Fax:</u>

Bill to:	XX Advertiser	Agency
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Services:[illegible]

Notes: Billing \$3,000 quarterly on the first day of the quarter. Invoice 1 will be January 1, 2005. Invoice 2 will be April 1, 2005. All invoices will have the RJRT Agreement # reference on it.

SERVICE DEFINITIONS: Offer: A single product and/or service promotion (e.g. a coupon) referenced by a single Brick.
Bricks: A single reference to an Offer embedded in a web page ("Brick"), or an email ("eBrick") or an online ad ("adBrick").

TERMS OF PAYMENT: Net thirty (30) unless otherwise stated above. 1.5% per month will be charged on any bills over 30 days. Coupons, Inc. reserves the right to limit or cancel credit in the event of nonpayment within agreed upon terms.

ACCEPTANCE: This contract is subject to acceptance at Belmont, California by the Coupons, Inc. Finance Department.

Advertiser hereby agrees to the TERMS AND CONDITIONS as described above and the attached GENERAL TERMS & CONDITIONS.

Advertiser By: _____ Title: _____ Date: _____

Coupons, Inc.
Finance Dept By: _____ Title: _____ Date: _____

COUPONS, INC. GENERAL TERMS AND CONDITIONS

I. INSERTION ORDERS

- a. From time to time, parties may negotiate insertion orders ("IO"s) under which Coupons, Inc. ("Company") will deliver coupons or similar promotional offers provided by Advertiser or its Agency ("Offer(s)") utilizing its Bricks™ or other similar technology for the benefit of an Advertiser. At Advertiser or Agency's discretion, an IO may be submitted to Company or be submitted by Company, signed by Advertiser or Agency and returned to Company. In either case, an IO is not accepted until signed by both parties.
- b. Revisions to accepted IOs must be made in writing and acknowledged by the other party in writing.

II. PAYMENT AND PAYMENT LIABILITY

a. Payment Date

Advertiser or Agency (as specified on the IO) will make payment 30 days from receipt of invoice, or as otherwise stated in a payment schedule set forth in the IO. If invoice is to be paid by Agency, Company may notify Agency that it has not received payment in such thirty-day period and whether it intends to seek payment directly from Advertiser pursuant to Section IIb, and may do so 5 business days after providing such notice.

b. Payment Liability

Company agrees to hold either Advertiser or Agency liable for payment as specified on the IO. If Agency is liable for payments, Company agrees Agency is liable solely to the extent proceeds have cleared from Advertiser to Agency for Offers placed in accordance with the IO. For sums not cleared to Agency, Company agrees to hold Advertiser solely liable. Company understands that Advertiser is Agency's disclosed principal and Agency, as agent, has no obligations relating to such payments, either joint or several, except as specifically set forth in this Section II(b) and Section VII(c).

Agency agrees to make every reasonable effort to collect and clear payment from Advertiser on a timely basis.

Agency will make available to Company upon request written confirmation of the relationship between Agency and Advertiser. In addition, upon Company's request, Agency will confirm whether Advertiser has paid to Agency in advance funds sufficient to make payments pursuant to the IO.

If Advertiser's or Agency's credit is or becomes impaired, Company may require payment in advance.

III. REPORTING

Company shall make reporting available at least as often as weekly, either electronically or in writing, unless otherwise specified in the IO.

IV. CANCELLATION AND TERMINATION

- a. Advertiser or Agency may cancel the IO at any time, without penalty. Advertiser or Agency, as specified on the IO, will remain responsible for payment of any setup fees on Offers for which Company has performed the work associated with such fees, and any other fees for which work has been performed.
- b. Either party may terminate an IO at any time if the other party is in material breach of its obligation(s) hereunder and such breach is not cured within 10 days after written notice thereof from the nonbreaching party, except as otherwise stated in this Agreement with regard to specific breaches.

V. FORCE MAJEURE

- a. Excluding payment obligations, neither party will be liable for delay or default in the performance of its obligations under this Agreement if such delay or default is caused by conditions beyond its reasonable control, including but not limited to, fire, flood, accident, earthquakes, telecommunications line failures, electrical outages, network failures, acts of God, or labor disputes
- b. To the extent that a force majeure has continued for 5 business days, either party has the right to cancel the remainder of the IO without penalty.

VI. AD MATERIALS

- a. It is Advertiser and Agency's obligation to submit Offer materials in accordance with Company's then existing advertising criteria or specifications (including content limitations, technical specifications, privacy policies, user experience policies, policies regarding consistency with Company's public image, community standards regarding obscenity or indecency, other editorial or advertising policies, and material due dates) (collectively "Policies").
- b. If Offer materials provided by Advertiser or Agency are damaged, not to Company's specifications, or otherwise unacceptable, Company will use commercially reasonable efforts to notify Advertiser or Agency within two business days of its receipt of such Offer materials.
- c. Company will not edit or modify the submitted Offers in any way without Advertiser or Agency approval. Company shall use all such Offers in strict compliance with these Terms and Conditions and any written instructions provided by Advertiser or Agency.
- d. When applicable, Third Party Ad Server tags shall be implemented so that they are functional in all aspects.

VII. INDEMNIFICATION

- a. Company agrees to defend, indemnify and hold harmless Agency and Advertiser and their respective directors, officers, employees and agents from any and all damages, liabilities, costs and expenses (including reasonable attorneys' fees) (collectively "Losses") incurred as a result of a Third Party claim, judgment or proceeding relating to or arising out of Company's breach of Section IX or Company's display or delivery of any Offer in breach of these Terms and Conditions or the terms of an IO.
- b. Advertiser agrees to defend, indemnify and hold harmless Company, its Affiliates and their respective directors, officers, employees and agents from any and all Losses incurred as a result of a Third Party claim, judgment, or proceeding relating to or arising out of Agency's or Advertiser's breach of Section IX, violation of Policies (to the extent the applicable terms of such Policies have been provided to Advertiser or Agency at least ten days prior to the violation giving rise to the claim), or the content or subject matter of any Offer to the extent used by Company in accordance with these Terms and Conditions or an IO, including but not limited to allegations that such content or subject matter violates the right of a Third Party, are defamatory or obscene, or violate any law, regulations or other judicial or administrative action.
- c. If Agency executes the IO and these Terms and Conditions, Agency represents and warrants that it has the authority as agent to Advertiser to bind Advertiser to these Terms and Conditions and each IO. Agency agrees to defend, indemnify

and hold harmless Company, its Affiliates and their respective directors, officers, employees and agents from any and all Losses incurred as a result of Agency's alleged breach of the foregoing sentence.

- d. If any action is brought against either party (the "Indemnified Party") in respect to any allegation for which indemnity may be sought from the other party ("Indemnifying Party"), the Indemnified Party will promptly notify the Indemnifying Party of any such claim of which it becomes aware and will: (i) provide reasonable cooperation to the Indemnifying Party at the Indemnifying Party's expense in connection with the defense or settlement of any such claim; and (ii) be entitled to participate at its own expense in the defense of any such claim. The Indemnified Party agrees that the Indemnifying Party will have sole and exclusive control over the defense and settlement of any such third party claim. However, the Indemnifying Party will not acquiesce to any judgment or enter into any settlement that adversely affects the Indemnified Party's rights or interests without the prior written consent of the Indemnified Party.

VIII. LIMITATION OF LIABILITY

Excluding the parties' obligations under Section VII or damages that result from a breach of Section IX, in no event will either party be liable for any consequential, indirect, incidental, punitive, special or exemplary damages whatsoever, including without limitation, damages for loss of profits, business interruption, loss of information and the like, incurred by the other party arising out of this Agreement, even if such party has been advised of the possibility of such damages. Company shall in no event be liable to Advertiser or Agency for more than the total amount paid to Company by Advertiser or Agency hereunder. Company makes no representations, and hereby expressly disclaims all warranties, express or implied, regarding Company services or any portion thereof, including any implied warranty of merchantability or fitness for a particular purpose and implied warranties arising from course of dealing or course of performance.

IX. NON-DISCLOSURE, DATA OWNERSHIP, PRIVACY AND LAWS

- a. Any marked confidential information and proprietary data provided by one party, including the Offer description and the pricing of the services set forth in the IO, shall be deemed "Confidential Information" of the disclosing party. Confidential Information shall also include information provided by one party, which under the circumstances surrounding the disclosure would be reasonably deemed confidential or proprietary. Confidential Information shall not be released by the receiving party to anyone except an employee, or agent who has a need to know same, and who is bound by confidentiality obligations. Neither party will use any portion of Confidential Information provided by the other party hereunder for any purpose other than those provided for under this Agreement.
- b. For purposes of this Section, Agency and Advertiser shall be considered one party. Notwithstanding anything contained herein to the contrary, the term "Confidential Information" shall not include information which: (i) was previously known to a party; (ii) was or becomes generally available to the public through no fault of the receiving party ("Recipient"); (iii) was rightfully in Recipient's possession free of any obligation of confidence at, or subsequent to, the time it was communicated to Recipient by the disclosing party ("Discloser"); (iv) was developed by employees or agents of Recipient independently of and without reference to any information communicated to Recipient by Discloser; or (v) was communicated by Discloser to an unaffiliated third party free of any obligation of confidence. Notwithstanding the foregoing, either party may disclose Confidential Information in response to a valid order by a court or other governmental body, as otherwise required by law or the rules of any applicable securities exchange or as necessary to establish the rights of either party under this Agreement; provided, however, that both parties will stipulate to any orders necessary to protect said information from public disclosure.
- c. All personally identifiable information provided by individual web users who are informed that such information is being gathered

solely on behalf of Advertiser pursuant to the Advertiser's posted privacy policy is the property of Advertiser, is subject to the Advertiser's posted privacy policy, and is considered Confidential Information. Any other use of such information must be set forth in the IO signed by both parties.

- d. Company, Agency, and Advertiser shall post on their respective Web sites their privacy policies and adhere to their privacy policies, which abide by the applicable laws. Failure by Company, on one hand, or Agency or Advertiser, on the other, to continue to post a privacy policy or non-adherence to its own privacy policy is grounds for immediate cancellation of the IO by the other parties.
- e. Agency, Advertiser, and Company will comply with at all times all applicable federal, state, and local law, ordinances, regulations, and codes which are relevant to their performance of their respective obligations under this Agreement.

X. MISCELLANEOUS

- a. Company represents and warrants that it has all necessary permits, licenses, and clearances to perform the services described in the IO subject to the terms and conditions of this Agreement, including any applicable Policies. Advertiser represents and warrants that Advertiser has all necessary licenses and clearances to use the content contained in their Offers.
- b. These Terms and Conditions and the related IO constitute the entire agreement of the parties with respect to the subject matter and supersede all previous communications, representations, understandings, and agreements, either oral or written, between the parties with respect to the subject matter of the IO. The IO may be executed in counterparts, each of which shall be an original and all of which together shall constitute one and the same document.
- c. In the event of any inconsistency between the terms of an IO and these Terms and Conditions, the terms of the IO shall prevail. The laws of the State of North Carolina shall govern all IOs. Company and Advertiser and Agency (if it is the contracting party and on behalf of itself and not Advertiser) agree that any claims, legal proceedings, or litigation arising in connection with the IO (including these Terms and Conditions) will be brought solely in the Federal and State courts of North Carolina, and the parties consent to the jurisdiction of such courts. No modification of these Terms and Conditions or any IO shall be binding unless in writing and signed by both parties. If any provision herein is held to be unenforceable, the remaining provisions shall remain in full force and effect. All rights and remedies hereunder are cumulative.
- d. Any notice required to be delivered hereunder shall be delivered three days after deposit in U.S. mail, return receipt requested, one business day if sent by overnight courier service, and immediately if sent electronically or by fax. All notices to Company and Advertiser or Agency shall be sent to the contact as noted in the IO.
- e. Sections II, VIII, IX, and X shall survive termination or expiration of this Agreement and Section III shall survive for 30 days after the termination or expiration of this Agreement.